

REQUEST FOR PROPOSAL (RFP - 5 - 16)
for
**Design, Construction Observation, and Project Administration Services for
WEST EDGE DISTRICT CIVIC CENTER COMMONS**



CITY OF CHEYENNE, WYOMING

January 14, 2016

Issued by:

**City of Cheyenne, Wyoming
West Edge Project Management Team**

**Proposals due:
2:00 PM – February 26, 2016**

at:

**City Purchasing Office, Room 104
Attn: Sara Vasquez, Purchasing Manager**

**2101 O'Neil Avenue
Cheyenne, WY 82001
(307) 637-6345**

REQUEST FOR PROPOSALS No.: RFP-5-16

PROJECT NAME: WEST EDGE DISTRICT CIVIC CENTER COMMONS

The City of Cheyenne, Wyoming, hereby requests proposals for design, construction observation, and project administration for the above named project. Proposers shall be professional firms with Engineers licensed by the Wyoming Board of Professional Engineers and Professional Land Surveyors and Landscape Architects licensed by the Wyoming Board of Architects and Landscape Architects to provide services in the State of Wyoming. Each proposer shall be similarly licensed by its respective Board, as required. If the proposer is a non-resident business entity, the firm shall also be registered with the Secretary of State of Wyoming to do business in Wyoming.

Each proposer shall submit, in writing, information outlined under Section B - PROPOSAL FORMAT section. The submittal shall address the selection criteria as listed herein and such other data as may be useful in evaluating the ability of the firm to perform the work required. Proposals should be short and concise.

Information contained in the Request for Proposal and in the proposal submitted by the winning consultant shall be incorporated by reference into and be considered part of the contract between the City and the team selected.

A. PROPOSAL SUBMITTAL

To be considered, proposals must be received by the CITY at the following location before 2 p.m. MST on February 26, 2016 at:

City of Cheyenne Purchasing Office
2101 O'Neil Avenue, Room 104
Cheyenne Wyoming 82001
Attn: Sara Vasquez, Purchasing Manager

Any proposal received after that time shall not be considered, but shall be returned unopened to the proposer. Telegraphic or fax submittals shall not be considered.

Proposers are advised that, consistent with provisions of the City of Cheyenne's policy for the procurement of professional architectural and engineering services, the CITY shall use a qualifications based selection process for selecting a consultant through this solicitation. This process dictates that proposers divide their submittals in two parts: a *technical proposal* and a *price proposal*. Proposers shall submit their technical proposals and price proposals simultaneously on the date and time specified in this RFP, sealed in separate, clearly marked envelopes as follows:

Technical Proposal: One (1) PDF electronic copy of the technical proposal, included all required attachments, on a CD or flash drive; one (1) original, bound together with all required attachments; and five (5) copies shall be submitted in a sealed envelope and clearly marked with the following information: (a) the phrase "West Edge District Civic Center Commons Technical Proposal"; (b) the date specified for receipt of proposals; and (c) the name and address of the proposer.

Price Proposal: Price proposals are to be submitted in accordance with the requirements of this section and as follows: Submit one (1) original copy, and five (5) additional copies in a separate

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sealed envelope and clearly marked with the following information: (a) the phrase "West Edge District Civic Center Commons Price Proposal"; (b) the date specified for receipt of proposals; and (c) the name and address of the proposer.

Proposers are advised that proposal content and completeness are most important and that clear and effective presentations are preferred, with unnecessarily elaborate, decorative, or extraneous materials discouraged. Each section within the proposal shall be clearly defined for easy reference. All blank spaces must be filled in (e.g., the number "0", the word "None", or the words "Not Applicable" or "NA" are to be inserted, where appropriate, on the forms).

B. PROPOSAL FORMAT

The proposer shall use the following format when preparing his proposal:

Technical Proposal (Envelope #1)

1. **Project Team** - Identify the project team members and the position of each member on the team, briefly outlining the responsibilities of each member. The offices of project team members not located in Cheyenne should be identified. Detailed resumes should be attached to the back of this section to identify the experience and qualifications of the individual team members.

If the proposer intends to use one or more sub-consultants to complete a portion of the project, all such firms must be listed on Attachment B-3. The proposer shall describe the relationship of each firm to the Project and explain past relationships between the proposer (the legally responsible entity) and each sub-consultant, and indicate which sub-consultants, if any, are DBE certified.

2. **Schedule** - The anticipated time to perform the required work shall be identified using the tasks outlined under the SCOPE OF WORK. Identify the team members and the percentage of time that they will dedicate to each task. A bar graph is suggested for this section. Additional tasks or duties that the proposer recommends be included in "Exhibit A - Scope of Work", which, in its final form will become part of the Professional Services Agreement, should be discussed in paragraph form, under Section 7, Other Information. Attention is directed to "Exhibit C – Project Schedule" of the proposed Professional Services Agreement, draft copy attached.
3. **Project Area** - The proposer should show briefly and concisely his familiarity with the Capitol Basin and the West Edge District. The proposer should demonstrate a thorough understanding of the West Edge vision along with the various public infrastructure components that make up the West Edge and how they interact.
4. **Scope of Work** - All proposers will commit at a minimum to the services outlined in "Exhibit A – Scope of Work", which, in its final form will become part of the proposed Professional Services Agreement, draft copy attached. The proposer may supplement the draft Scope of Work with any additional work or clarification of work that is determined necessary for the successful completion of the project.

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5. **References** - List at least three (3) similar projects that were completed during the preceding five (5) years by the members of the project team. Use additional sheets if more than three references are provided. Provide the following information for each reference: Client Name, Address, Contact Person, Telephone Number, Project Dates, Project Description, Original Project Budget, Final Project Cost, and an explanation of any variation from original budget to final project cost.
6. **Conflict of Interest** - Please state whether the proposer, or any sub-contractor or sub-consultant, is currently performing professional services for, or has an on-going professional relationship with, any other person or legal entity whose interests may be adverse to the City of Cheyenne with respect to the scope of work to be performed by the proposer if selected pursuant to this RFP process. Please also disclose all other facts and circumstances relating to the proposer's past, present, and future work that create, or may appear to create a conflict of interest, between the proposer's performance of services for the City and the proposer's current professional obligations or relationships with any other person or legal entity.
7. **Other Information** - Any additional information the proposer feels would be useful to the committee in evaluating the proposal should be placed in this section.
8. **Project Specific Information** - The proposer should carefully review "Exhibit A - Scope of Work," which, in its final form, will become part of the Professional Services Agreement. This exhibit provides background information as well as directions necessary for proposal preparation.
9. **Proposal Submittal Checklist** - This form (Attachment B-1) must be completed and signed by the proposer and attached to the outside of the technical proposal envelope to ensure completeness of submittal.
10. **Consultant Eligibility Form** - Any individual or firm whose name appears on the U.S. Comptroller General's list of ineligible firms for federally financed and assisted projects shall be considered ineligible to submit a proposal. Each proposer is required to certify that it is not on the Comptroller General's list of ineligible firms, using Attachment B-4. This form must be completed and signed by the proposer and attached to the proposal.

The proposer must also require the entities it contracts with to comply with 49 CFR 29, subpart C, and include this requirement in subsequent covered transactions (i.e., the requirement flows down to subcontracts at all levels.)

11. **Non-Collusion Certification** - No proposer shall offer any gratuity, favor, or anything of monetary value to any officer, employee, agent, or the CITY for any purpose whatsoever. Each proposer is required to certify that it has not engaged in any conduct or practice with any other proposer(s) so as to restrict or eliminate competition or otherwise restrain trade, using Attachment B-5. This form must be completed and signed by the proposer and attached to the proposal. The CITY reserves the right to reject any proposal and to remove from mailing lists for future proposals the name of any individual or firm engaging in collusive or other unlawful practices.

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12. **Restrictions on Lobbying Certification** - In the event that the proposal exceeds \$100,000, the certification regarding lobbying (Attachment B-6) must be completed and signed by the proposer, and attached to the proposal.

Any proposal not submitted in this format shall be deemed to be non-responsive and shall not be considered further by the CITY. The signer of the proposal must declare that the person(s), companies, or parties interested in the contract as principals are named therein; that it is, in all respects, fair, and in good faith without collusion or fraud; and that the signer of the proposal has the authority to bind the principal proposer.

Price Proposal (Envelope #2)

1. **Cover Letter** - Identify the proposer's name, mailing address, telephone number, and contact person(s). The letter must be signed by the proposer and should be limited to two (2) pages. The proposal shall be signed by a principal of the legal entity submitting the proposal and shall be considered responsible for the performance of any contract awarded pursuant to this RFP. A proposal shall be considered non-responsive if the proposal is submitted by any business entity that has limited financial resources and that is a wholly owned subsidiary or affiliate of another business entity.
2. **Provide a complete line item budget** for all Phases of the work listed in "Exhibit B COMPENSATION SCHEDULE," of the Scope of Work with a breakdown of each phase, as necessary to complete the Project as specified in the RFP, its attachments, and other documents referenced. Each proposer shall certify that its price proposal shall remain valid for a period of at least one hundred twenty (120) days. In the event that a contract award by the CITY is delayed beyond the 120 day period, such award shall be conditioned upon the proposer's written acceptance.

C. PRE-PROPOSAL CONFERENCE

A pre-proposal conference will be at the Municipal Building, 2101 O'Neil Ave., Room 122, on January 26, 2016, beginning at 2:00 p.m. MST, for the purpose of responding to questions or requests for clarification regarding the contents of this RFP. Proposers are strongly encouraged to attend the pre-proposal meeting.

D. ADDENDA

Any and all proposers may make inquiries in writing via email at any time prior to noon on February 8, 2016. Any written question regarding the meaning or interpretation of the RFP, work scope, specifications, etc., must be submitted prior to the above specified date. All clarifications given to any prospective proposer shall be similarly furnished to all prospective proposers in summary form as an addendum to this RFP. No technical assistance shall be given by the CITY to any proposer in preparation of its proposal.

Written inquiries shall be directed to:

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Sara Vasquez
City of Cheyenne – Purchasing Manager
2101 O’Neil Ave.
Cheyenne, Wyoming 82001
E-mail: svasquez@cheyennecity.org

Any or all changes, additions, or clarifications in connection with this RFP shall be issued by the CITY in the form of written addenda. Each proposer must sign the “Acknowledgment of Receipt of RFP Packet, Sample Agreement and Addenda” form “Attachment B-2” and submit the executed form with its proposal. No oral comment, response or representation shall be binding on the City.

E. DISCLOSURE OF PROPOSAL CONTENTS

All proposals and supporting documents shall be subject to disclosure under the Wyoming Public Records Act.

F. PROPOSAL PROTEST PROCEDURES

Proposers are advised that the CITY shall consider any protest initiated by a protesting party concerning this solicitation in the following manner:

1. The protest shall be submitted within three (3) business days after the protesting party knew or should have known of the facts giving rise thereto.
2. Upon receipt of a timely written protest, the CITY shall not proceed further with the solicitation or contract award until all administrative remedies have been exhausted or until the CITY’s Purchasing Manager determines that a contract award without delay is necessary to protect the interests of the CITY.
3. Timely protests shall be reviewed by the CITY’s Purchasing Manager, who shall consider all facts, technical support, and justification submitted by the protesting party, and in a timely manner render a decision on behalf of the CITY as to the validity of the protest and the disposition thereof. The CITY’s Purchasing Manager may request additional information from the protesting party to clarify or support its protest, in which case such information shall be supplied in writing by the protesting party within three (3) business days following the CITY’s request.
4. Following the decision of the CITY’s Purchasing Manager, the matter shall proceed to the CITY’s governing body for contract award or other action.

G. OMISSION OF DETAILS

No advantage shall be taken by any proposer as a result of the omission of any parts or details that are necessary for the provision of detailed design and engineering services even though such details may not be mentioned in this RFP.

H. SELECTION PROCESS

Each responsive proposal received by the CITY shall be evaluated in a consistent manner as described in this subsection. A responsive proposal is one that complies with all material aspects of the solicitation,

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both as to the method and timeliness of submission and as to the substance of any resulting contract. Prospective proposers are advised to submit all required forms, attachments, and other information as requested in the RFP. Proposals that do not comply with all the terms and conditions of the solicitation may be rejected as non-responsive.

The CITY shall use a two-step evaluation process consisting of written proposals, followed by oral interviews, for selecting a Consultant through this solicitation. The process dictates that proposers make written submittals in two parts: a *Technical Proposal* and a *Price Proposal*. It is the intent of the CITY to first evaluate all *Technical Proposals* to establish a quantitative ranking of the proposals exclusive of price. The CITY shall use this process to identify one or more proposers who are considered to be best qualified to perform the work required by the CITY.

All responsive technical proposals will be reviewed by an evaluation committee to be selected by the CITY. A weighted evaluation methodology shall be used to rank each proposal, using the evaluation criteria and relative weighting indicated on "Attachment A-1".

After review of the technical proposals, the best qualified firms may be invited to participate in oral interviews with the evaluation committee for the purpose of clarifying and confirming the content of their proposals. A weighted evaluation methodology shall be used to rank each firm interviewed, using the evaluation criteria and relative weighting indicated on "Attachment A-2".

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At the end of the interview process, the CITY shall rank the firms based upon the combined technical proposal and interview score of each firm interviewed. The CITY shall then unseal the price proposal of the highest ranked proposer and initiate negotiations toward a final contract containing the detailed scope of work and budget. If negotiations with the highest ranked proposer are unsuccessful, the CITY shall unseal the price proposal of the second highest ranked proposer and negotiations will be pursued, followed by the third highest ranked proposer if necessary to secure a contract. In the event that CITY is unable to secure an Agreement with any of the qualified proposers, this procurement may be terminated at the CITY's option.

The CITY reserves the right to delay making an award as necessary to permit proper study and analysis of all proposals received, to split award on proposals, to reject any or all proposals received, and to make a pre-award survey to determine the capability of any or all proposers. The CITY reserves the right to reject any or all proposals if it believes there is a sound business reason for doing so, and to negotiate matters of Consultant performance, project schedule and other issues not directly related to the proposal price submitted prior to awarding a contract. The CITY further reserves the right to cancel the procurement process at any time during the evaluation process if it appears that the proposals received are not suitable for any reason whatsoever.

I. DISADVANTAGED BUSINESS ENTERPRISE PROGRAM

It is the policy of the CITY that disadvantaged business enterprises (DBE) as defined in 49 CFR Part 23, shall have the maximum opportunity to participate in the performance of contracts financed in whole or in part with Federal funds. Accordingly, the CITY has adopted a goal of awarding a minimum of sixty-six hundredths of one percent (0.66%) of the value of any contract resulting from this solicitation to qualified DBE firms or individuals.

All proposers who are not themselves qualified DBE firms or individuals are encouraged to involve qualified DBEs to participate in this Project. To ensure that a fair proportion of the purchases and contracts for supplies and services for the CITY is placed with DBEs, the proposer agrees to take actions to the fullest extent practicable to identify qualified disadvantaged firms, to solicit proposals and quotations from them for supplies and services related to this proposal, and in making awards and purchases, to give equitable consideration to DBEs.

As part of its submittal, each proposer shall describe any contract activities to be performed by Disadvantaged Business Enterprises (DBEs), using Attachment B-3: Use of Sub-Consultants. In the event that no DBE participation is proposed, the proposer shall describe its good faith efforts to involve DBEs in this Project.

Proposers must present the information required above with initial proposals [see 49 CFR 26.53(3)].

Additionally, prospective proposers are encouraged to note all requirements stated in the Sample Professional Services Agreement, which are incorporated into this RFP. The selected Consultant shall be required to comply with all such requirements.

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J. SELECTION PROCESS SCHEDULE

Jan. 14 & Jan. 21, 2016	Legal Notice Posted in Paper
January 26, 2016	Pre-Proposal Meeting
February 8, 2016	Noon – Deadline for Questions
February 26, 2016	Technical Proposals and Price Proposals Due
March 4, 2016	Review Committee selects Proposers for Interviews
March 11, 2016	Interviews
March 14, 2016	Review Committee completes Final Selection
March 21, 2016	Professional Services Agreement finalized with successful proposer
March 23, 2016	Agreement placed on City Council Agenda
March 28, 2016	City Council Meeting No.1: Agreement referred to Finance Committee
April 4, 2016	Agreement discussed in Finance Committee
April 11, 2016	City Council Meeting No. 2: Agreement approved/disapproved
April 13, 2016	Notice-to-Proceed issued by City if Agreement approved

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“ATTACHMENT A-1” TECHNICAL PROPOSAL EVALUATION CRITERIA

CRITERIA	DESCRIPTION	MAX	SCORE
<u>Applicable Experience</u>	Quantity and type of experience with design and construction engineering for large-scale capital improvement projects of similar or related scope.	20	
<u>Approach to Project</u>	Methods of identifying, understanding, and addressing significant project issues. Approach to leading a successful multidisciplinary team of professionals.	10	
<u>Cost Saving and Project Innovations</u>	Ideas or suggestions to improve schedule, cost, constructability, feasibility, or scope of the project.	10	
<u>Technical Expertise</u>	Expertise in dealing with technical issues important to the project.	10	
<u>Adequate Resources</u>	Sufficient available staff and equipment to complete the proposed work within the requested timeframe.	15	
<u>Project Familiarity</u>	Knowledge of project background, needs, goals, limitations, and special considerations.	10	
<u>Performance on Past Projects and/or Reference Check</u>	Success on previous projects in the way of project deadlines, cost control, quality, innovative deadline driven design approaches, public participation/ outreach, leading successful multidisciplinary teams, and general cooperative nature of the firm.	15	
<u>Jobsite Proximity</u>	Physical location relative to project site in order to minimize response time to project needs.	5	
<u>Proposal Quality</u>	Readability, completeness, brevity, and organization of the proposal.	5	
TOTAL		100	

Proposer Name: _____

Evaluator Name: _____

Date: _____

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"ATTACHMENT A-2"
INTERVIEW EVALUATION CRITERIA

INTERVIEW	MAX	SCORE	COMMENTS
<u>Completeness</u>	10		
<u>Method of Presentation</u>	10		
<u>Professionalism</u>	10		
<u>Enthusiasm for Project</u>	10		
<u>Innovative Ideas/Creative Project Approach</u>	20		
<u>Applicable Experience/Technical Expertise</u>	20		
<u>Project Familiarity</u>	20		
TOTAL	100		

List reasons you have for recommending a particular firm:

.....
.....
.....
.....

List reasons you have for rejecting a particular firm:

.....
.....
.....
.....

General comments/clarifications/questions:

.....
.....
.....
.....

Proposer Name: _____

Evaluator Name: _____

Date: _____

REQUEST FOR PROPOSALS No.: RFP-5-16**PROJECT NAME: WEST EDGE DISTRICT CIVIC CENTER COMMONS****"ATTACHMENT B-1"
PROPOSAL SUBMITTAL CHECKLIST**

This form must be completed and returned with the proposal submittal.

Attachment	Description	Proposer's Initials	CITY's Initials
B-1	Proposal Submittal Checklist		
<u>Envelope #1</u>	<u>Technical Proposal</u> Sealed Envelope w/required information on front Signed Cover Letter Project Team Schedule Project Area Scope of Work References Project Specific Information		
B-2	Acknowledgment of Receipt of RFP Packet, Sample Agreement and Addenda		
B-3	Use of Sub-consultants		
<u>Envelope #2</u>	<u>Price Proposal</u> Sealed Envelope w/required information on front Signed Cover Letter Project Fee Proposal with breakdown		

Signature of Proposer: _____

Date: _____

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"ATTACHMENT B-2"
ACKNOWLEDGMENT OF RECEIPT
OF RFP PACKET, SAMPLE AGREEMENT AND ADDENDA

The undersigned hereby acknowledges receipt of the City of Cheyenne Request for Proposals (RFP) packet for _____ including: Sample Professional Services Agreement, Scope of Work, Compensation Schedule, Project Schedule, and the following addenda issued during the procurement process.

Addendum #1: _____ dated _____

Addendum #2: _____ dated _____

Addendum #3: _____ dated _____

Failure to acknowledge receipt of the proposal packet, and all addenda may cause the proposal to be considered non-responsive to this solicitation.

Name of Proposer: _____

Signature of Proposer: _____

Date: _____

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"ATTACHMENT B-3"
USE OF SUB-CONSULTANTS LIST

Sub-consultant Name/City/State	% of Contract	DBE (Y or N)	Work Tasks to be Assigned
Total % of Subcontracts			

Name of Proposer: _____

Signature of Proposer: _____

Date: _____

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"ATTACHMENT B-4"
CERTIFICATION REGARDING DEBARMENT, SUSPENSION
AND OTHER RESPONSIBILITY MATTERS

This contract is a covered transaction for purposes of 49 CFR Part 29. As such, the consultant is required to verify that none of the consultant, its principals, as defined at 49 CFR 29.995, or affiliates, as defined at 49 CFR 29.905, are excluded or disqualified as defined at 49 CFR 29.940 and 29.945.

The consultant is required to comply with 49 CFR 29, Subpart C and must include the requirement to comply with 49 CFR 29, Subpart C in any lower tier covered transaction it enters into.

By signing and submitting its bid or proposal, the bidder or proposer certifies as follows:

The certification in this clause is a material representation of fact relied upon by the City of Cheyenne. If it is later determined that the bidder or proposer knowingly rendered an erroneous certification, in addition to remedies available to the City of Cheyenne, the Federal Government may pursue available remedies, including but not limited to suspension and/or debarment. The bidder or proposer agrees to comply with the requirements of 49 CFR 29, Subpart C while this offer is valid and throughout the period of any contract that may arise from this offer. The bidder or proposer further agrees to include a provision requiring such compliance in its lower tier covered transactions.

Date: _____

Signature: _____

Title: _____

"ATTACHMENT B-5"
NON-COLLUSION AFFIDAVIT

The undersigned duly authorized official of the proposer hereby certifies, to the best of her/his knowledge and belief, that:

That I am an officer or employee of the _____ (proposing entity) having the authority to sign on the behalf of the corporation; and,

That the prices in the attached proposal were arrived at independently by _____ (proposing entity) without collusion, consultation, communication, or any agreement, for the purpose of restricting competition as to any matter relating to such prices with any other proposer or with any other competitor regarding an understanding, or planned common course of action with any other vendor of materials, supplies, equipment, or service described in the RFP designed to limit independent proposals or competition; and

That unless otherwise required by law, the contents and prices contained in the proposal have not been communicated by _____ (proposing entity) or its employees or agents to any person not an employee or agent of _____ (proposing entity), or its surety on any bond furnished with the proposal, and will not be communicated to any such person prior to the official opening of the proposal; and,

That I have fully informed myself regarding the accuracy of the statements made in this affidavit.

Proposer: _____

Signature: _____

Title: _____

Date: _____

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"ATTACHMENT B-6"
RESTRICTIONS ON LOBBYING CERTIFICATION

Byrd Anti-Lobbying Amendment, 31 U.S.C. 1352, as amended by the Lobbying Disclosure Act of 1995, P.L. 104-65 [to be codified at 2 U.S.C. § 1601, et seq.] - Contractors who apply or bid for an award of \$100,000 or more shall file the certification required by 49 CFR part 20, "New Restrictions on Lobbying." Each tier certifies to the tier above that it will not and has not used Federal appropriated funds to pay any person or organization for influencing or attempting to influence an officer or employee of any agency, a member of Congress, officer or employee of Congress, or an employee of a member of Congress in connection with obtaining any Federal contract, grant or any other award covered by 31 U.S.C. 1352. Each tier shall also disclose the name of any registrant under the Lobbying Disclosure Act of 1995 who has made lobbying contacts on its behalf with non-Federal funds with respect to that Federal contract, grant or award covered by 31 U.S.C. 1352. Such disclosures are forwarded from tier to tier up to the recipient.

APPENDIX A, 49 CFR PART 20--CERTIFICATION REGARDING LOBBYING

Certification for Contracts, Grants, Loans, and Cooperative Agreements

Pursuant to United States Public Law 101-121, Section 319, the undersigned duly authorized official of the proposer hereby certifies, to the best of her/his knowledge and belief, that:

1. No Federal appropriated funds have been paid or will be paid, by or on behalf of the undersigned, to any person for the purpose of influencing or attempting to influence an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress in connection with the awarding of any Federal contract, the making of any Federal grant, the making of any Federal loan, the entering into of any cooperative agreement, and the extension, continuation, renewal, amendment, or modification of any Federal contract, grant, loan, or cooperative agreement.
2. If any funds other than Federal appropriated funds have been paid or will be paid to any person for making lobbying contacts to an officer or employee of any agency, a Member of Congress, an officer or employee of Congress, or an employee of a Member of Congress, in connection with this Federal contract, grant, loan, or cooperative agreement, the undersigned shall complete and submit a Standard Form-LLL, "Disclosure Form to Report Lobbying," in accordance with its instructions [as amended by "Government wide Guidance for New Restrictions on Lobbying," 61 Fed Reg. 1413 (1/19/96). Note: Language in paragraph (2) herein has been modified in accordance with Section 10 of the Lobbying Disclosure Act of 1995 (P.L. 104-65, to be codified at 2 U.S.C. 1601, et seq.)]
3. The undersigned duly authorized official shall require that the language of this certification be included in the award documents for all subawards at all tiers (including subcontracts, subgrants, and contracts under grants, loans, and cooperative agreements) and that all subrecipients shall certify and disclose accordingly.

This Certification is a material representation of fact upon which reliance was placed when this transaction was made or entered into. Submission of this Certification is a prerequisite for making

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or entering into this transaction, imposed by 31, USC Section 1352 (as amended by the Lobbying Disclosure Act of 1995). Any proposer (person) who fails to file the required certification shall be subject to a civil penalty of not less than ten thousand dollars (\$10,000) and not more than one hundred thousand dollars (\$100,000) for each such failure to file.

[Note: Pursuant to 31, USC Section 1352(c)(1)-(2)(A), any person who makes a prohibited expenditure or fails to file or amend a required certification or disclosure shall be subject to a civil penalty of not less than ten thousand dollars (\$10,000) and not more than one hundred thousand dollars (\$100,000) for each such failure to file.

The Proposer, _____, certifies or affirms the truthfulness and accuracy of each statement of its certification and disclosure, if any. In addition, the Proposer understands and agrees that the provisions of 31 USC A 3801, et seq., apply to this certification and disclosure, if any.

Proposer: _____

Signature: _____

Title: _____

Date: _____

PRELIMINARY DRAFT

**PROFESSIONAL SERVICES AGREEMENT BETWEEN
THE CITY OF CHEYENNE AND _____ FOR WEST EDGE
ENGINEERING DESIGN SERVICES**

This Agreement is made this _____ day of _____, 20____ by and between the City of Cheyenne, Wyoming ("CITY"), and _____ ("Firm").

WITNESSETH

WHEREAS, the City, acting through the City Engineer is responsible for the management of storm water drainage within the City of Cheyenne; and

WHEREAS, on _____, 2016, the City issued Request for Proposals (#_____) for design services for detention facilities in connection with the West Edge project in downtown Cheyenne; and

WHEREAS, the Firm is qualified to provide the professional services desired by the City pursuant to the Request for Proposals; and

WHEREAS, the Firm has submitted a proposal dated _____, 2016 that describes the scope of work and to be performed by the Firm and the total cost thereof, a copy of which is attached hereto as Exhibit "A" and incorporated by this reference; and

WHEREAS, the City desires to employ the Firm under the terms and conditions hereinafter set forth.

NOW, THEREFORE, in consideration of the mutual promises and covenants herein contained, it is agreed by and between the City and the Firm as follows:

1. SCOPE OF SERVICES:

Except as modified by this Agreement, the Firm agrees to provide professional services for the City for the contract price as set forth in Exhibit "A" attached hereto and incorporated herein by this reference. The City may order major changes in the scope or character of work, either decreasing or increasing the amount of the Firm's services. In the event that such changes are ordered, the Firm shall be entitled to additional compensation for additional work performed. Additional compensation for major changes shall be determined in accordance with Paragraph 2 of this Agreement, but in no event shall the City be liable for payment unless the amount of such additional compensation shall first have been agreed to in writing by the City. In the event that major changes are ordered pursuant to this Section, the schedule for progress and completion in Section 3 of this Contract and the compensation to be paid pursuant to Section 2 shall be adjusted by negotiation between the Firm and the City.

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2. COMPENSATION:

The Firm shall perform the services set forth in Exhibit "A" for a cost not to exceed _____ Dollars (\$_____). The Firm shall bill the City on a monthly basis. Upon acceptance and approval of work performed in accordance with the Scope of Work described in Exhibit "A", the City shall make payment for the Firm within forty-five (45) days of receipt of said invoice. The Firm shall maintain hourly records of the time worked by its personnel and records of direct project expenses to support any audits the City may require and make those records available to the City at the City's request. Such records shall be maintained by the Firm for one year following the date of final payment.

3. TERM AND EFFECTIVE DATE:

This Agreement shall commence on the date the last required signature is attached hereto and shall continue in full force and effect until the scope of work is completed in accordance with Exhibit "A", unless this Agreement is earlier terminated pursuant to its provisions.

4. MODIFICATION:

Any changes, modifications, revisions or amendments to this Agreement which are ordered pursuant to Section 1 herein or which are mutually agreed upon by the parties to this Agreement shall be incorporated by written instrument, executed and signed by all parties to this Agreement.

5. INDEMNIFICATION / HOLD HARMLESS/TRADE SECRETS/COPYRIGHT:

a. The Firm agrees to indemnify, hold harmless and defend the City and the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result of death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Firm's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Firm, or its employees or subcontractors in the performance of this Agreement. The Firm acknowledges that it may incur a financial obligation to the City and the City pursuant to the terms of this paragraph.

b. The Firm agrees to indemnify, pay the defense costs of, and hold the City harmless from any and all claims, demands, costs, liabilities, losses, expenses and damages (including attorneys' fees, costs, and expert witnesses' fees) arising out of or in connection with this Agreement that sound in an intellectual property claim (including but not limited to patent, copyright, trademark, trade name, or trade secret infringement). This Section specifically survives the expiration or termination of this Agreement.

6. GOVERNMENTAL IMMUNITY:

The City and its officials and employees do not waive governmental immunity by entering into this Agreement and specifically retain all immunities and defenses available to them as Governmental Entities pursuant to Wyo. Stat. § 1-39-101, et seq, and all other applicable laws,

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except to the extent necessary solely for the enforcement of the terms and conditions of this Agreement as between the parties. Further, the City and the City fully retain all immunities and defenses provided by law with regard to any action, whether in tort, contract or any other theory of law, based on this Agreement. Designation of venue, choice of law and similar provisions should not be construed as a waiver of governmental immunity.

7. INSURANCE:

The Firm must provide proof of the following insurance coverages:

Commercial General Liability Insurance:

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Business Automobile Insurance:

Including owned, non-owned and hired vehicles with minimum limits for bodily injury and property damage of \$1,000,000 per accident for the entire term of the Agreement.

Workers' Compensation

Workers' Compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Firm shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Firm shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Firm's negligence in the performance of duties under this Agreement.

The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy. If this coverage is provided pursuant to a "claims made" policy:

(1) Firm, shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Firm begins the provision of services under this Agreement; and

(2) In the event the Firm's services extend into a future policy period,

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the Firm shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Firm will provide services under this Agreement; and

(3) Firm shall maintain said "claims made" coverage for a period of five (5) years following the last date that Firm has provided services under this Agreement; and

(4) In the event the Firm or the Firm's professional liability insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs (1), (2), or (3) of this paragraph, the Firm shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Firm has provided services under this Agreement.

Additional Insurance Information

The Firm shall name the City of Cheyenne as an Additional Insured by endorsement on its insurance policies, with the exception of worker's compensation and professional liability insurance, and shall provide the City with a copy of the endorsements.

Firm shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Firm to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation or substantive change of any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

In addition, Firm shall provide the City with copies of insurance policies and /or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Firm's obligation hereunder.

Any insurance company providing coverage under this agreement shall have a minimum A. M. Best rating of A- (excellent).

8. GOVERNING LAW/ JURISDICTION/ VENUE:

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The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

9. COMPLIANCE WITH LAWS:

The Firm shall comply with all applicable federal, state and local laws, rules and regulations in the performance of this Agreement, including federal and state anti-discrimination laws. The Firm shall be responsible for all such non-compliance and shall defend, hold harmless and indemnify the City therefrom.

10. ALCOHOL AND CONTROLLED SUBSTANCE POLICY:

In compliance with the Drug-Free Workplace Act of November 1988, the City has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City employees. All parties under contract with the City, including the Firm and its employees and subcontractors, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy that pertains to drug and alcohol usage on City property and other sites occupied by the Firm while performing duties and responsibilities of this contract. It is the responsibility of the Firm to familiarize itself with the requirements of this policy and to inform all its employees and subcontractors of those requirements and to insure their compliance therewith. If the Firm, its employees or subcontractors are found to be in violation of this policy, this contract may be terminated.

11. INDEPENDENT CONTRACTOR:

At all times during the term of this Agreement, the Firm shall be considered an independent contractor. Neither the Firm nor any one employed by it shall represent, act, purport to act or be deemed to be the agent, representative, employee or servant of the City.

12. CONFIDENTIALITY:

To the extent allowed by law, the City and the Firm shall treat as confidential and not disclose to others information (including technical information, experience or data) regarding either party's plans, programs, plants, processes, products, costs, equipment, operations, or customers which come within the knowledge of the parties, without in each instance securing the prior written consent of the other party, unless such disclosure is required by law or legal process. However, nothing shall prevent either the Firm or the City from disclosing to others or using in any manner information which either party can show (a) has been published or has become part of the public domain other than by acts of the Firm or the City; (b) has been furnished or made known to the Firm or the City by third parties without restrictions on its disclosure; or (c) was in either party's possession prior to the disclosure thereof by the City or the Firm to each other. Neither the Firm nor the City shall be restricted from releasing information in response to a subpoena, court order, or legal process, but, in the event such disclosure becomes necessary, the disclosing party shall notify the other party of the demand for information at least seven (7) days prior to disclosing such information so that the other party may take any and all steps provided by law to prevent the

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release of such information.

13. FIRMS'S RESPONSIBILITIES:

The Firm shall be responsible for all terms and conditions as set forth in this Agreement and the professional quality, technical accuracy, and timely completion of all services as set forth in Exhibit A and all changes in the scope or character of the work made pursuant to Sections 1 or 4 herein. The Firm shall, without additional compensation, promptly remedy and correct any errors, omissions, or other deficiencies. The Firm shall perform all work in a professional manner in conformance with industry standards.

14. NOTICES:

Any notice, correspondence or billing required to be given by the terms of this Agreement shall be delivered by hand, or delivered by mail, postage prepaid, to the addresses of the respective parties stated below:

City: John Hall
City Engineer
2101 O'Neil Avenue
Cheyenne, WY 82001

Firm: _____

15. INTELLECTUAL PROPERTY AND WORK PRODUCT:

All work (preliminary, draft, and final) performed by the Firm under this Agreement is the property of the City. The City will own any and all data, documents, working papers, computer programs, photographs, and other material produced by the Firm pursuant to this Agreement, and the Firm hereby assigns and transfers to the City any and all intellectual property rights for such materials. The Firm will provide the City with copies of all such materials including, Under no circumstances, including pending disputes between the City and the Firm, will the Firm fail to deliver possession of said documents and materials to the City upon demand.

16. CONFLICT OF INTEREST:

In entering this Agreement, the Firm covenants that it presently has no interest, and shall not acquire any interest, direct or indirect, financial or otherwise, which would conflict in any manner or degree with performance of the services hereunder. In addition, the Firm covenants that in the performance of this contract, no subcontractor or person having such an interest shall be employed. The Firm certifies that no one who has or will have any financial interest under this contract is an officer or employee of the City.

17. ACCEPTANCE NOT WAIVER:

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The City's approval of drawings, plans, specifications, reports, and incidental work or materials furnished hereunder shall not in any way relieve the Firm from responsibility for the technical accuracy of the work. The City's approval or acceptance of, or payment for, any services shall not be construed to operate as a waiver of any of the City's rights under this Agreement or any of its legal rights under statute and common law arising out of the performance of this Agreement.

18. DEFAULT:

Each and every term and condition herein shall be deemed a material element of the Agreement. In the event either party shall fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.

19. REMEDIES:

In the event a party declares the other party in default hereof, said party declaring default shall notify the defaulting party in writing and such defaulting party shall be allowed a period of fifteen (15) days to cure said default. In the event that the default remains uncorrected, the party not in default may elect to: (a) terminate the Agreement and seek damages; (b) treat the Agreement as continuing and require specific performance; or (c) avail itself of any other remedy at law or equity. In the event the Firm fails to strictly perform in accordance with this Agreement, the City may elect to make good such deficiencies and charge the Firm therefore.

20. TERMINATION:

The City may, by written notice to the Firm, terminate this Agreement in whole or in part by giving the Firm fifteen (15) days written notice. Upon receipt of such notice, the Firm shall: Discontinue all services affected (unless the notice directs otherwise); and deliver to the City representative within five (5) days all data, drawings, specifications, reports, estimates, summaries, accumulated by the Firm in performing this Agreement, whether completed or in process. In event of termination, the City will pay the Firm for accepted work done as of the date of termination.

21. WAIVER:

The waiver by either party of any term, condition or covenant, or breach of any term, condition or covenant, shall not constitute a waiver of any other term, condition or covenant, or breach thereof.

22. SEVERABILITY:

If any provision, section, subsection, sentence, clause, or phrase of this Agreement is invalidated by any court of competent jurisdiction, such holding shall not affect the validity of the remainder of this Agreement, which shall continue in full force and effect.

23. SUCCESSORS AND ASSIGNS:

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All the terms, conditions, and provisions herein shall inure to the benefit of and be binding upon the parties hereto and their respective permitted successors and assigns.

24. ASSIGNMENT:

Neither party shall assign this Agreement without prior written consent of both parties. Any delegation or assignment shall not operate to relieve either party of its responsibilities hereunder. However, nothing in this Agreement shall prohibit the Firm from subcontracting to a qualified subcontractor.

25. THIRD PARTY RIGHTS:

The Parties do not intend to create in any other individual or entity the status of third party beneficiary, and this Agreement shall not be construed so as to create such status. The rights, duties and obligations contained in this Agreement shall operate only between the parties to this Agreement, and shall inure solely to the benefit of the parties to this Agreement. The parties to this Agreement intend and expressly agree that only the parties signatory to this Agreement shall have any legal or equitable right to seek to enforce this Agreement, to seek any remedy arising out of a party's performance or failure to perform any term or condition of this Agreement, or to bring action for breach of this Agreement. This paragraph is not intended nor shall it be construed to waive any of the parties' immunities.

26. ENTIRE AGREEMENT OF THE PARTIES:

This Agreement, to include Exhibit A, contains the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties to this Agreement, through their duly authorized representatives, have executed this Agreement on the days and dates set out below and certify that they have read, understood and agreed to the terms and conditions of this Agreement. The effective date of this Agreement is the date of the last signature affixed to this page.
City of Cheyenne.

SIGNATURE PAGES TO FOLLOW

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EXHIBIT "A"

SCOPE OF WORK

This project will be partially funded with federal funds from the Federal Emergency Management Agency, Community Development Block Grant funding, State of Wyoming Mineral Royalty Grant funding, 6th Penny Sales Tax, and potential EPA Revolving Loan Fund monies and is therefore subject to the federal and state laws and regulations associated with these corresponding programs.

Compliance with all applicable standards, orders, or requirements issued under section 306 of the Clean Air Act (42 U.S.C. 1857(h)), section 508 of the Clean Water Act (33 U.S.C. 1368), Executive Order 11738, and Environmental Protection Agency regulations (40 CFR part 15) is required.

A.1 Project Description

Overview

The City of Cheyenne, located in Laramie County, Wyoming, proposes to turn approximately four acres of land in downtown Cheyenne into a stormwater detention basin to reduce flood risk within the most flood-prone portion of the City's Capitol Drainage Basin. The Civic Center Commons project will address the highest priority flood hazard for Cheyenne with respect to both high property damages and life-safety hazards due to flooding, providing critically needed flood control infrastructure necessary for the central business district and Cheyenne's Historic core located in the Lower Capitol Drainage Basin. The investment area has a history of severe flooding and drainage problems.

Presently, runoff from the City's downtown and near west side area discharges directly to Crow Creek. The Capitol Basin watershed in Cheyenne, Wyoming, encompasses approximately 11.7 square miles. Of that, 2.4 square miles is in the highly developed downtown area. Land use in the downtown portion of the basin is primarily old residential housing neighborhoods, commercial, and light industrial. There is a significant network of storm sewers and inlets. Although the extent of the infrastructure is considerable, historic flooding problems have proven it is vastly undersized and inadequate to prevent flood damages.

The primary goal of this project is to significantly reduce the risk of flooding and the corresponding devastating economic impact from property damages and business interruption.

The Civic Center Commons project is funded, in large part, by federal and state funding. The consultant must administer state and federal grant dollars on behalf of the City. Additionally, the consultant must aid the City in managing a large-scale capital improvement project, keeping the project on schedule and within budget. An innovative final design and construction approach, not jeopardizing state and/or federal project funding, may be deemed acceptable by the City if it meets project objectives and the available budget.

The scope of work for the Civic Center Commons Project includes the development and design of a complete set of construction documents, including Plans, Specifications, and Cost Estimates. The consultant shall be responsible for providing a public participation process coordinated with the West Edge Project Management Team and other key project stakeholders; right-of-way surveying; roadway and utility design; storm sewer design; and design of a stormwater detention facility that accommodates future amenities and other uses, such as an amphitheater, water features, walking paths, event

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infrastructure, and landscaping. Final design of these amenities is not included in this Scope of Work.

The goal of this project is the design and construction of a dual function stormwater detention facility; storm sewer system and outfall; updating the Capitol Basin EPA SWMM model to accurately reflect Civic Center Commons and the soon-to-be-completed 26th Street storm sewer project; and efficient management of the various funding sources in place to fund this project. The design phase of the project includes the development of a complete set of construction documents, including associated reports, plans, specifications, cost estimates, bid documents, and the preparation of the necessary environmental documentation to fulfill NEPA requirements.

The proposed Civic Center Commons (referenced as the Cheyenne Capitol Basin Flood Control Project for purposes of FEMA funding) will include design, engineering, and construction tasks. The proposed project includes the installation of storm sewer and construction of a stormwater detention facility. Additional details can be found in the FEMA Pre-Disaster Mitigation (PDM) grant application package.

The preliminary design contained in the PDM grant includes the following infrastructure:

- 35.6 acre-feet of detention storage
- 1,006 feet of reinforced concrete box culvert (RCBC)
- 631 feet of 60-inch diameter Class III reinforced concrete pipe (RCP)
- 52 feet of 54-inch diameter Class III RCP
- 1,418 feet of 48-inch diameter Class III RCP
- 1,953 feet of circular pipe ranging in size from 18-inch to 42-inch storm sewer
- 154 combination inlets

The consultant shall be responsible for confirming the adequacy and appropriateness of the preliminary design contained in the PDM grant application package. This evaluation shall include updating the Capitol Basin EPA SWMM model or utilizing an acceptable alternative modeling method to adequately evaluate the design of the Civic Center Commons, with consideration given to the 19th Street project currently advertised for bids and the 26th Street Interceptor project currently under design. Alternative, cost-effective, and context sensitive solutions that comply with any federal and/or state funding requirements and meet the project's goals will be considered by the City.

The consultant shall develop preliminary construction sequencing/phasing and traffic routing plans and special provisions. The consultant shall provide surface utility locates and non-destructive subsurface utility excavation locates of potential utility conflicts. The project scope also includes pavement and adjacent concrete repairs necessary to restore any impacted streets, as well as any modifications necessary to ensure ADA compliance within impacted rights-of-way. The consultant shall recommend any adjacent work necessary to prolong the life of the pavement, allow for drainage, provide safe transit for pedestrians and bicyclists, and meet ADA criteria.

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Public Outreach

Two public meetings will be required for this project. The consultant will coordinate the public process with the consultant team currently engaged in the City's EPA Planning Grant. Public notice and media releases; securing a meeting site, preparing exhibits, handouts, and comment cards; and compiling public comments will be the responsibility of the consultant.

Right-of-Way Surveying

It is the intent of the City to construct the proposed improvements within the existing platted right-of-way and/or entirely on City-owned properties. Acquisition of new permanent right-of-way is not anticipated. The consultant shall identify and aid the City in securing any necessary temporary construction easements.

Utility Design

The consultant shall investigate and coordinate designs with all known utilities. The consultant shall be responsible for resolving any conflicts with utilities, either active or abandoned. An incomplete list of utilities includes Cheyenne Light, Fuel, and Power (natural gas, electricity and street lighting); Charter Communications (cable television); Optimum (cable television); Century Link (telephone and fiber optics); Level 3 Communications (fiber optics); AT&T (fiber optics); City of Cheyenne Public Works (traffic signals and signs); and Cheyenne Board of Public Utilities (water and sanitary sewer).

Coordination with Other Agencies and Projects

The consultant shall anticipate extensive coordination with the Wyoming Department of Environmental Quality (DEQ) and shall obtain DEQ permits to construct proposed water and sewer improvements.

The City desires to determine whether contamination exists at the Civic Center Commons site requiring remediation. The Consultant will be responsible for reviewing available documentation, consulting with the Wyoming DEQ, and utilizing other readily available resources to determine whether contamination exists. Funding may be available through the City's EPA Revolving Loan Fund to address any contamination identified. If environmental remediation efforts are deemed necessary, the City and Consultant will negotiate a Contract Modification for any required services not included in this Scope of Work.

The Consultant shall anticipate extensive coordination with the ongoing 19th Street Rehabilitation, 26th Street Interceptor, other nearby City projects, and nearby development projects.

Other Requirements

The City's budget for design and construction of the entire project is approximately \$5,400,000.00.

Upon receipt of Notice to Proceed with this project, the design team (Consultant and Sub-consultants) shall proceed with the following tasks:

A.2 General Conditions

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The following items are considered to be included as part of the basic compensation for this project:

- Normal business expenses - phone, postage, etc.
- Cost of insurance
- In-house computer time and service
- Word processing, accounting, and man-hour records
- Permits and license fees
- Mileage
- Travel fees, room and board, per diem
- Printing costs for all standard review, bidding, and as-constructed plans and other correspondence and contract documents
- Film and processing
- Survey materials, stakes, etc.

Any changes in the Consultant's or Subconsultant's staff or fee structure shall be presented in writing to the City for approval prior to initiating any changes or performing any work.

A.3 Preliminary Design Phase

Upon receipt of Notice to Proceed with this project, the Consultant shall immediately proceed with the following tasks:

1. Perform all field surveys necessary for the design of the project, including but not limited to cross-sections, utilities, property, and boundary surveys. Establish project control points as needed. All surveying, design, and temporary control points shall be referenced into the City control network. The vertical datum shall be the NAVD 1988.
2. Conduct subsurface investigations including borings, subsurface explorations, sampling, laboratory and field tests, and professional interpretation of all of the foregoing subsurface data. Each work site over 300 feet in length shall be investigated at a minimum of one bore per 300 feet. Each bore shall be drilled to depth of 20 feet from existing grade for new storm sewer installation and 10 feet for waterlines. Consultant shall survey boreholes and include them in the project mapping.
3. Identify and evaluate alternative solutions available to the City, and after consultation with the City, recommend to the City those solutions which in the consultant's judgment meet the City's requirements for the project.
4. On the basis of the solution selected by the City, finalize the storm sewer alignment and the Civic Center Commons facility footprint, to include:
 - a. Prepare conceptual plan and profile sheets for the storm sewer alignment and conceptual plan sheets for the detention pond and associated facilities at the Civic Center Commons;
 - b. Field survey horizontal and vertical location of any utilities critical to the alignment and facilities;
 - c. Review existing information regarding any environmental contamination, including meeting with the Wyoming Department of Environmental Quality;

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- d. Prepare a conceptual cost estimate including all project costs;
 - e. Prepare a report detailing the findings; and
 - f. Meet with the City to present the report.
5. Prepare preliminary design documents consisting of final design criteria, preliminary drawings, specifications, special conditions, design data, and an opinion of probable construction cost including allowances for contingencies.
6. Furnish five (5) copies of the above preliminary design documents and present and review them in person with the City.

The services shall be completed and the data submitted within the stipulated period indicated in Exhibit C "Project Schedule."

Consultant shall coordinate with the City's Representative and the consultant team currently engaged in the City's EPA Planning Grant to determine the timing for the public outreach for Civic Center Commons during the course of preliminary and final design for this project.

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A.4 Final Design Phase

After approval by the City of the Preliminary Design Phase documents and the opinion of probable project cost, indicating any specific modifications or changes in the extent of the project desired by the City, and upon written authorization from the City Representative to proceed with the Final Design Phase, the Consultant shall:

1. Prepare detailed final design drawings and bidding packages, including specifications, showing the character and extent of the Project. These final documents shall incorporate any modifications or changes indicated during review of the preliminary documents.
2. Advise the City Representative of any adjustments to the latest opinion of probable cost caused by changes in the project scope. The Consultant shall provide a summary of the probable cost based on the Final Design Drawings and Specifications showing estimated construction quantities, estimated unit prices, and items of work. The summary shall be laid out using standard numbering for work items and basic pay units.
3. Prepare for review and approval by the City the Project Manual including the following as appropriate:
 - Funding Agency Requirements and/or Provisions
 - Special Provisions
 - Construction Specifications
 - Supplementary Specifications
 - Phasing Schedule
 - Testing Plan

The City of Cheyenne and Board of Public Utilities Construction Specifications and Standard Drawings 2014 with all approved amendments shall be used on this project. The City will prepare the Standard Construction boiler plate and will attach project-specific documents provided by the Consultant, such as special provisions, for use in the final bidding documents.

4. Furnish five (5) copies of the above final design documents and present and review them in person with the City.
5. Prepare a Bidding Package incorporating any modifications or changes indicated during the review of the Final documents and furnish three copies and one reproducible set of the construction Contract Documents.

The services will be completed and the deliverables submitted within the stipulated period indicated in Exhibit C "Project Schedule."

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A.5 Bidding Phase

The Consultant will assist the City throughout the bidding process, including:

1. Prepare a minimum of ten (10) copies of the construction documents, including addenda.
2. Organize and conduct a pre-bid conference with the City and Contractors and record this meeting (take notes and attendance, etc.).
3. Prepare and publish any necessary addenda to the Contract Documents.
4. Review the bid results, prepare a tabulation of the bids received, and give recommendations to the City's Representative with regard to awarding the bid.
5. Consultant may be required to attend and provide information at City Council meetings, Finance Committee meetings, or other meetings during the award process.

A.6 Construction Engineering

Used in this Exhibit, the term Consultant's Engineer denotes final responsibility for the project; tasks may be performed by the Resident Project Representative, or Inspector, as appropriate.

Consultant's Engineer will act under the general direction of the City's Representative and will confer with City's Representative regarding technical matters. The Consultant's Engineer shall act as an independent consultant and shall ensure that the project is constructed in general conformance with the contract documents. In so doing the Consultant's Engineer shall interact solely with the General Contractor and interactions with Subcontractors shall be only through or with the full knowledge of the General Contractor.

Fee proposals for construction management shall be based on an estimate of 3,000 hours being required to administer the project, including 200 hours of after-hours (nights/weekends) services. The following should be considered in developing fee proposals:

- The 3,000 hours will need to be split as the consultant deems appropriate into time for Project Managers, Field Engineers, Inspectors, Technicians, Survey Teams, and whatever other personnel categories the consultant feels are necessary.
- The Construction Staking and Materials Testing will be the responsibility of the construction contractor (not the Consultant). The Consultant (including subconsultants) will not be allowed to provide construction staking for the construction contractor, even under separate contract, so that the Consultant is available to the City during construction should an independent check be required on any surveying or staking issue.

CONSULTANT'S ENGINEER WILL:

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1. Inspection Plan:

Develop an overall inspection plan, a Traffic Control Inspection Plan, and testing plan to be submitted and approved by City's Representative seven (7) days after the construction contract is awarded. Ensure compliance with the Davis-Bacon and Related Acts (DBRA), including wage rates, fringe benefits, and labor classification. Collect and review weekly certified payrolls and conduct compliance interviews in accordance with current (at time of bidding) federal requirements.

2. Schedules:

Review the progress schedule, schedule of Shop Drawing submissions, and schedule of values prepared by Contractor and consult with City's Representative concerning their acceptability.

3. Conferences:

Conduct and keep minutes of pre-construction conferences with the Contractor. Conduct weekly safety and coordination meetings, as required; maintain and circulate agendas and copies of minutes thereof.

4. Liaison:

Serve as the City's liaison with the Contractor to implement the intent of the Contract Documents. Provide a public relations program to keep adjacent property owners and the public at-large advised of the commencement and progress of construction.

5. Shop Drawings and Samples:

- a. Receive samples and shop drawing furnished by the Contractor, record the date of their receipt, and track progress of approvals. Advise the City's Representative of their acceptability.
- b. Identify any Work that is unsatisfactory, faulty, defective, or does not conform to the Contract Documents; does not meet the requirements of any required inspections, tests, or approvals; or that has been damaged. Advise the Contractor and the City's Representative when work should be corrected, rejected, uncovered for observation, or in need of special testing, inspection, or approval.
- c. Verify that tests, equipment and systems startup, and operation and maintenance instructions are conducted as required by the contract documents and that the Contractor maintains adequate records thereof; observe, record, and report to the City's Representative appropriate details relative to the test procedures and startups.
- d. Accompany visitors representing public agencies and other entities having jurisdiction over the Project; record the outcome of these inspections and report to the City's Representative.

6. Interpretation of Contract Documents:

Upon request of the City's Representative, consult with and advise the City's Representative on necessary clarifications and interpretations of the Contract Documents. Transmit to the Contractor the City's clarifications and interpretations of the Contract Documents.

7. Modifications:

Consider and evaluate any changes or modifications to the Contract Documents and report them with recommendations to the City's Representative for approval prior to authorizing any such changes or incurring any additional costs. Administer Change Orders, Contract Modifications, and additional Payment Requests.

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8. Records:

- a. Maintain at the job site or other mutually agreed location orderly files for correspondence, reports of job conferences, Shop Drawings and samples submissions, and reproductions of original Contract Documents including all addenda, change orders, field orders, additional Drawings issued subsequent to the execution of the Contract, City's Representative clarifications and interpretations of the Contract Documents, progress reports, and other Project related documents.
- b. Maintain in a secure location orderly files documenting compliance with the DBRA. Provide weekly status reports to the City's Representative summarizing current status of DBRA compliance.
- c. Keep a diary or log book recording hours on the job site; weather conditions; data relative to questions of quantities, payment, or changes in the scope of work; list of visiting officials and representatives of manufacturers, fabricators, suppliers and distributors; daily activities; decisions made and by whom; observations in general and specific observations in more detail as in the case of observing test procedures.
- d. Record names, addresses, and telephone numbers of all Contractors, subcontractors, and major suppliers of materials, equipment, date, time and condition of such.
- e. The City or any of its duly authorized representatives shall have access to any project-related documents, books, papers, and records of the Consultant for any purpose, including making an audit, examination, excerpts, and transcriptions. The Consultant shall maintain all required records for at least three years after the City makes final payment and all pending matters are closed.

9. Reports:

- a. Furnish the City's Representative weekly summary reports including Contractor's compliance with the Contract Documents, DBRA compliance, the approved progress schedule, and schedule of Shop Drawing submissions.
- b. Consult the City's Representative in advance of scheduled major tests, inspections, or start of important phases of the Work.
- c. Report immediately to the City's Representative upon the occurrence of any accident and furnish an initial report within 24 hours. Furnish a final report within 3 business days.
- d. Furnish the City's Representative with information required to meet all State, Federal, or funding agency reporting requirements including quarterly reports.

10. Payment Requisitions:

Review and certify Contractor pay applications using forms provided by the City for compliance with the established procedure for their submission and forward them with recommendations to the City's Representative noting particularly their relation to the schedule of values, work completed, and materials and equipment delivered or paid for at the site, but not incorporated in the Work.

11. Certificates, Maintenance, and Operation Manuals:

During the course of the Work, verify that Contractor has supplied all data required to be furnished, including certificates, maintenance and operation manuals, and other data needed to operate machinery and equipment actually installed; collect all such materials for presentation

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to City with final construction report.

12. Completion:

- a. Submit to Contractor a punch list of observed items requiring completion or correction.
- b. Conduct final inspection in the company of the City's Representative, department head(s) or designee(s) representing affected City departments, Contractor, and utility companies involved and prepare a final list of items to be completed or corrected.
- c. Verify that all items on the final punch list have been completed or corrected, make recommendations to the City concerning acceptance and prepare a certificate of Substantial Completion.
- d. Conduct eleventh (11th) and twenty-third (23rd) month inspections with the City's Representative and Contractor and report findings to the City's Representative immediately prior to the expiration of the two year or other warranty, as applicable.
- e. After completion of the project, prepare and submit to City certified "Record Drawing" plans showing final accepted conditions of the project. One set of prints, one set of as-builts on CD in CAD format, and one set of as-builts on CD in PDF format are required. A certified final construction report of conditions, maintenance items, inspection reports, contract modifications, correspondence, field orders and any other pertinent information shall be furnished by the Consultant to the City's Representative.
- f. Assist City staff to implement the final quantities and payments of this project to the City's computerized job accumulation program.

A.7 Limitations of Authority of the Engineer

Except upon written instructions of City's Representative, Engineer:

1. Shall not authorize any deviation from the Contract Documents or costs, or approve any substitute materials or equipment, without consulting the City's Representative.
2. Shall not exceed limitations on the City's authority as set forth in the Contract Documents.

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3. Shall not undertake any of the responsibilities of the Contractor, subcontractors, utility companies or responsibilities of their superintendent, to expedite the work.
4. Shall not advise on or issue directions relative to any aspect of the means, methods, techniques, sequences or procedures of construction unless such is specifically called for in the Contract Documents.

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EXHIBIT "B"

PRICE PROPOSAL

The Consultant shall prepare and submit in a separate sealed envelope a detailed price proposal, bearing in mind that the contract shall be unit-based with a negotiated not-to-exceed amount. The price proposal shall clearly identify the work tasks associated with each project phase, assigned staff for each task, hourly billing rates, and estimated hours. The price proposal shall identify the costs for the Preliminary Design Phase, Final Design Phase, and Bidding and Construction Phase.

The City reserves the right to request additional information to support the hourly billing rates or other information contained in the price proposal.

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EXHIBIT "C"
PROJECT SCHEDULE

The key milestones in the West Edge District Civic Center Commons project are shown below. The proposer shall complete the following schedule as part of the proposal and include any other key dates as needed.

Date	Schedule Item
<u>April 13, 2016</u>	Notice-to-proceed issued by City
_____	Hold scoping meeting with City Representatives
_____	Submit conceptual design documents
_____	Meet with City to discuss review of design
_____	Submit preliminary design phase documents
_____	Meet with City to discuss review of design
_____	Submit final design phase documents
_____	Meet with City to discuss review of design
_____	Submit bid package to City
_____	Pre-bid Meeting
<u>January 2017</u>	Bid Opening
<u>April 1, 2017</u>	Begin Construction